

STATE OF NEW YORK

4922--C

Cal. No. 1138

2025-2026 Regular Sessions

IN SENATE

February 14, 2025

Introduced by Sens. SCARCELLA-SPANTON, ADDABBO, CHAN, COONEY, FERNANDEZ, MATTERA, MURRAY, PALUMBO, RHOADS, C. RYAN, SEPULVEDA, SUTTON, WEBER -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Codes in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the penal law, in relation to the sale and possession of self-defense spray devices; and to repeal certain provisions of such law relating thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph 14 of subdivision a of section 265.20 of the
2 penal law, as added by chapter 354 of the laws of 1996, is amended to
3 read as follows:
4 14. Possession in accordance with the provisions of this paragraph of
5 a self-defense spray device as defined herein for the protection of a
6 person or property and use of such self-defense spray device under
7 circumstances which would justify the use of physical force pursuant to
8 article thirty-five of this chapter.
9 (a) As used in this section "self-defense spray device" shall mean a
10 pocket sized spray device which contains and releases a chemical or
11 organic substance which is intended to produce temporary physical
12 discomfort or disability through being vaporized or otherwise dispensed
13 in the air or any like device containing tear gas, pepper or similar
14 disabling agent.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) The exemption under this paragraph shall not apply to a person
2 who:

3 (i) is less than eighteen years of age; or

4 (ii) has been previously convicted in this state of a felony or any
5 assault; or

6 (iii) has been convicted of a crime outside the state of New York
7 which if committed in New York would constitute a felony or any assault
8 crime.

9 (c) The department of health, with the cooperation of the division of
10 criminal justice services and the superintendent of state police, shall
11 develop standards and promulgate regulations regarding the type of self-
12 defense spray device which may lawfully be purchased, possessed and used
13 pursuant to this paragraph, including that self-defense spray device
14 shall not contain more than 1.33 percent by weight total capsaicinoids.
15 The regulations shall include a requirement that every self-defense
16 spray device which may be lawfully purchased, possessed or used pursuant
17 to this paragraph have a label which states: "WARNING: The use of this
18 substance or device for any purpose other than self-defense is a crimi-
19 nal offense under the law. The contents are dangerous - use with care.

20 ~~[This device shall not be sold by anyone other than a licensed or~~
21 ~~authorized dealer.]~~ Possession of this device by any person under the
22 age of eighteen or by anyone who has been convicted of a felony or
23 assault is illegal. Violators may be prosecuted under the law."

24 (d) Every self-defense spray device shall be accompanied by an insert
25 or inserts which include directions for use, first aid information,
26 safety and storage information and which shall also contain a toll-free
27 telephone number for the purpose of allowing any purchaser to call and
28 receive additional information regarding the availability of local
29 courses in self-defense training and safety in the use of a self-defense
30 spray device.

31 (e) Before delivering a self-defense spray device to any person, the
32 seller shall require proof of age. No more than two self-defense spray
33 devices may be sold at any one time to a single purchaser.

34 § 2. Paragraph 15 of subdivision a of section 265.20 of the penal law
35 is REPEALED.

36 § 3. This act shall take effect immediately.